

Contract for freelance work

(Name and address of Principal) (possibly: represented by

.....) - hereinafter referred to as

"Principal" - and Mr/Mrs .....

..... resident in

..... - hereinafter

referred to as "Contractor" - the following is now hereby agreed upon: § 1 Activity The

Contractor ..... shall assume ..... for the Principal the following activities as a

Contractor: ..... By way of supplement, reference shall be made in each individual case to

the respective contract-awarding letters. When carrying out the activities entrusted to the

Contractor, the latter shall not be subject to any instructions by the Principal. He shall be free in

the organisation of his activity. He must, however, take special operational interests in

connection with his activity into due account. The Contractor shall not be bound by any

conditions imposed on the place of work or working hours. Project-related conditions in terms of

timing imposed by the Principal must be complied with in the same way as technical conditions

insofar as the latter are necessary for the proper execution of the Contract. Furthermore, the

Contractor shall be entitled to reject contracts awarded by the Principal without stating any

reasons. The Contractor shall not have any right to give instructions to employees of the

Principal. § 2 Performance of work The Contractor shall be obliged to personally perform the

work. The calling in of own employees and the awarding of sub-contracts shall require the prior

consent of the Principal. The Contractor shall exercise his activity on his own premises. Insofar

as operational presence is required in individual cases, the Principal shall make available,

subject to coordination in each case, the corresponding operational facilities. The Principal shall

provide the Contractor with all the information, aids and documents required for the exercise of

his activities, and more particularly .....

The two contracting parties undertake to inform each other if they have any difficulties of

settlement in respect of the implementation of the Agreement or if foreseeable delays occur. § 3

Compensation By way of compensation an hourly fee of € ..... plus value added tax at

the statutory rate, is hereby agreed. The Contractor shall be obliged to prepare a specified

statement of accounts in the form of an invoice by the tenth day of the following month. The

Contractor shall be obliged to charge any extra working hours within ..... weeks/months of

their occurrence. If this deadline is exceeded, the claims shall be deemed to be forfeited. The

lump sum fee agreed upon shall become due at the end of each month. Payment shall be in

cashless form. The Contractor shall provide the Principal, within 14 days of the commencement

of cooperation, with the details of an account into which the fee can be transferred. § 4 Expense

refund and other claims On payment of the compensation agreed upon hereunder all claims of

the Contractor against the Principal under this Contract shall be fulfilled. or The Contractor shall

be entitled to a refund of charged and proven expenses incurred within the framework of this

Contract while exercising his activity. Any expenses exceeding standard expenses to a major

extent, shall, however, only be refunded if the Contractor has previously obtained the consent of

the Principal. The Contractor himself shall take attend to the payment of tax on the

compensation. The Contractor is hereby informed that he may be subject to pension insurance

in accordance with § 2 No. 9 SGB VI (Social Security Code) if he works permanently and mainly

for one Principal only and does not employ any employees subject to insurance whose

compensation under the employment relationship regularly exceeds € 400 per month. § 5 Liability and warranty If claims are asserted against the Principal because of work performed by the Contractor, the Contractor undertakes vis a vis the Principal to release the latter from said liability. For damage caused as a result of the Contractor exceeding deadlines, the liability of the Contractor shall be limited to an amount of € ..... . As for the rest, the Contractor undertakes to carry out any reworking free-of-charge and remedy the defects caused by him.

§ 6 Continuing education obligation The Contractor shall be obliged to undertake continuing education within the framework of the implementation of this Contract in the field of his activity based on the current state of development and keep himself informed about the latest developments in this field at all times. § 7 Competition The Contractor may also work for other principals. If the Contractor intends, however, to work for a direct competitor of the Principal, this shall require the prior written consent of the Principal. The Contractor undertakes to pay a penalty in the amount of € ..... for each case of infringement. § 8 Duty of secrecy, storage and return of documents The Employee undertakes to treat all business and trade secrets which come to his knowledge in the course of his activities for the company as confidential. This duty of secrecy shall continue to apply after the end of the contractual relationship. Documents which the Contractor has received within the framework of his freelance work must be carefully stored by him and protected from examination by third parties. The documents must be returned to the Principal after the termination of the freelance work on the project/object to which they relate and for which they were needed by the Contractor, but no later than at the end of his freelance work. The assertion of any right of retention shall be excluded. For every case of culpable infringement of these obligations a penalty in the amount of € ..... is hereby agreed. Any more extensive damages as well as the assertion of a right to forbearance shall be reserved. § 9 Term and termination The Contractor shall commence his activity on ..... . The contractual relationship shall exist for the duration of co-operation in respect of the ..... project/object, probably until ..... . or The contractual relationship may be terminated subject to a period of notice of ..... weeks/months to ..... . The right to an extraordinary termination shall not be affected. Termination shall not be valid unless in writing. A new Contract can be entered into for freelance work in a follow-up project/object. Said follow-up contract shall also require the written form. These formal requirements may not be rescinded or suspended either orally or tacitly.

§ 10 Place of performance and place of jurisdiction The place of performance and place of jurisdiction shall be ..... § 11 Protective regulations under labour law The option of entering into an Employment Contract has deliberately not been used by application of the principle of contractual freedom. Any avoidance of protective regulations under labour law or labour statutes is not intended. The freelancer shall rather retain the full freedom of decision concerning the exploitation of his working capacity. Any personal, economic or social dependency beyond the scope of this Contract shall not be established. § 12 Ancillary agreements and segregation clause Any ancillary agreements and amendments to this Contract shall not be valid unless in writing. This formal requirement may not be rescinded or suspended either orally or tacitly. The partial or full invalidity of individual provisions of this Contract shall not affect the validity of the remaining provisions of the Contract. § 13 Issuing of the Contract Each

contracting party has received a written office copy of this Contract.

..... Place, date

.....  
Signature of Principal Signature of Contractor